



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 11029
(FIRST REVISION)

MAY 12 1995

EXPIRATION DATE: January 15, 1996

1. GRANTEE: Olin Ordnance, a Division of Olin Defense Systems Group, St. Marks, Florida
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of wetted propellant explosives in DOT MC-307, MC-312, DOT-407 or DOT-412 cargo tanks and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 column 8C, 173.62 (a), (b) and (c).
5. BASIS. This exemption is based on Olin Ordnance's application dated May 5, 1993 and additional information dated August 23 and 24, 1993, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. A supplemental letter was submitted on October 4, 1994.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description/Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Propellant explosive, solid (in water) (Ex-8008012)	Division 1.3C	NA 0274	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings prescribed are DOT Specification MC-307, MC-312, DOT-407 or DOT-412 cargo tanks having a design pressure of 25 psig. Cargo tanks must be without internal features that would prevent effective cleaning.
- b. TESTING - Prior to shipment, each load shall be sampled and analyzed to verify that the water content exceeds 30 percent by mass of its contents.
- c. MARKING - Each cargo tank must be plainly marked on the right side near the front in letters at least two inches high on a contrasting background, "DOT-E 11029".

MAY 12 1995

Continuation of 1st Rev of DOT-E 11029

Page 2

d. OPERATIONS - All operations and inspections for pumping, loading, unloading, cleaning, and transportation must be in accordance with procedures included in the exemption application.

8. SPECIAL PROVISIONS.

a. Current copies of the Special Driver Instructions, Trailer Cleaning and Inspection Procedures and Cargo Tank Operating Procedures must accompany all shipments. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor Vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving fire, explosion or the package and shipments made under the terms of this exemption.

MAY 12 1995

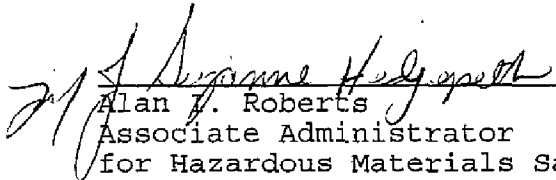
Continuation of 1st Rev of DOT-E 11029

Page 3

Issued at Washington, D.C.:

MAY 12 1995

(DATE)


Alan V. Roberts
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo
reproductions and legible reductions of this exemption are permitted.
Any alteration of this exemption is prohibited.

Dist: FHWA